

30 days to provide dates certain is not reasonable considering the Notice of Taking Videotaped Depositions and Request for Production of Documents was served on March 26, 2026.

Plaintiffs' Motion to Compel Attendance at Depositions is **GRANTED**. Defendants are ordered to provide dates certain for all seven witnesses depositions within fifteen (15) days of service of Notice of Entry of Order. Rose Hervegault, Lauri Cruz, Jerilyn Baucum, and Cynthia Bradley are to be deposed first, with the Vice President of Operations, Regional Director of Clinical Operations, and Regional Clinical Nurse to follow. A proposed order has been lodged and will be modified to reflect the Court's ruling.

AXIOM REPERTORY THEATRE VS. CHARITY ONE INSURANCE AGENCY, ET AL.
CASE NUMBER: 26CV-0209907

Tentative Ruling on Application to Appear Pro Hac Vice: Owen R. Mooney, an attorney admitted to practice law in the States of Texas and Washington, seeks admission pro hac vice in order to represent Defendant Great American Assurance Company. California Rule of Court, Rule 9.40 provides the procedural requirements for a pro hac vice application and requires a verified application with the following information:

- (1) the applicant's residence and office address;
- (2) the courts to which the applicant has been admitted to practice and the dates of admission;
- (3) that the applicant is a member in good standing in those courts;
- (4) that the applicant is not currently suspended or disbarred in any court;
- (5) the title of court and cause in which the applicant has filed an application to appear as counsel pro hac vice in this state in the preceding two years, the date of each application, and whether or not it was granted; and
- (6) the name, address, and telephone number of the active member of the State Bar of California who is attorney of record.

CRC 9.40(d).

Rule 9.40(c)(1) also requires service of the application on all parties that have appeared and on the State Bar. The State Bar also requires payment of a fee. The notice requirements of CCP § 1005 apply and proof of service in accordance with CCP § 1013a is required.

The Application is verified and contains all the information required by Rule 9.40(d). The Application was timely filed and properly noticed. The fee to the State Bar has been paid. The Application is **GRANTED** and the Court will execute the proposed Order.

BURNS VS. MCCrackEN
CASE NUMBER: 26CH-0210350

Tentative Ruling on Motion for Attorney's Fees: Respondent Dustin McCracken moves for attorney's fees and costs pursuant to CCP § 527.6(s). The motion is procedurally defective.

Procedural Defects: The Notice of Motion identifies two different hearing dates. The caption identifies the hearing date as July 20, 2026. The body of the Notice identifies the hearing date as July 13, 2026. The proof of service is also defective. It identifies the person served as "Tyler Maize Lalaguna," who is in fact the individual that served the motion. Based on these defects, Petitioner objects to the motion and request it be denied due to the notice issues. Petitioner's opposition was untimely and fails to provide any evidence that he was prejudiced or actually misled by the discrepancies. Petitioner's opposition also admits that motion was actually received by the Petitioner. The Court finds that the motion is procedurally defective; however, the defects are curable. The Court will continue the matter for proper notice/service.

Lack of Evidence: The motion is supported by the Declaration of Tyler Lalaguna to justify the amount of the